

Tripura Khadi and Village Industries Board Regulations, 1970

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State of Tripura - Act

Tripura Khadi and Village Industries Board Regulations, 1970

TRIPURA

India

Tripura Khadi and Village Industries Board Regulations, 1970

Rule TRIPURA-KHADI-AND-VILLAGE-INDUSTRIES-BOARD-REGULATIONS-1970 of 1970

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Tripura Khadi and Village Industries Board Regulations, 1970

Published vide Notification No. D.I/Plan/ 10(10) 67, Agartala, dated 21.10.1970

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D.I/Plan/ 10(10) 67. - In exercise of the powers conferred by section 36 (1) of the Tripura Khadi & Village Industries Board Act, 1966 (Tripura Act No. 4, 1966), the Tripura Khadi & Village Industries Board, with the previous sanction of the Administrator, hereby makes the following regulations, namely

Chapter - I

1.

Short Title.

- These Regulations may be called the Tripura Khadi & Village Industries Board Regulations, 1970.

2.

Definitions.

- In these regulations unless the context otherwise requires, -

(a)
"Act" means the Tripura Khadi & Village Industries Board Act, 1966 (Tripura Act, No - 4 of 1966) ;

(b)
"Government" means the Government of the union Territory of Tripura :

(c)
"Commission" means the Commission as defined in clause (d) of section 2 of the Act :

(d)
"Rules" means the Tripura Khadi & Village Industries Board Rules, 1967, made by the Administrator under section 35 (1) of the Act :

(e)
"Section" means a Section of the Act

(f)
"Financial year" means the year commencing on the 1st day of April :

(g)
"Chairman" means the Chairman of the TriPura Khadi & Village Industries Board appointed under sub-section (2) of section 4 :

(h)
"Secretary" means the Secretary of the Tripura Khadi & Village "Vice Chairman" means the Vice-Chairman of the Tripura Khadi & Village Industries Board appointed under section 5 ;

(i)
"Executive Officer" means the Executive Officer of the Tripura Khadi & Village Industries Board appointed under sub-section (2) of section 13 and

(k)
"Financial Advisor and Chief Accounts Officer" means the Financial Advisor and Chief Officer of the Tripura Khadi and Village Industries Board appointed under sub-section (1) of section 13.

(l)
"Administrator" means the Administrator of the union Territory Tripura :

(m)
"Board" means the Tripura Khadi & Village Industries Board set up under section 3 of the Act.

Chapter - II Terms and Conditions of Service Under the Board

**3.
Condition of service and Remuneration.**

- (i) All the employees of the Advisory Board for Khadi & Village Industries in Tripura who agreed to serve the Board and to be Governed by the Act and rules an regulations made thereunder as for the time being in force shall on and from the 1st August, 1967 be deemed to have been appointed under the Board.

(ii)
The employees of the Advisory Board who have been so appointed shall serve under the board in temporary capacity on the same remuneration as before such appointment until provision regulation their conditions of service and remuneration is made by an order of the Board.

(2)
In fixing the scales of pay and allowances of its own employees the Board may take into account the scales of pay and allowances of similar categories of Government servants :-

Provided that in the case where the maximum salary or the honorarium exceeds Rs. 300/- per month or wage exceed. Rs. 10/- per day, previous approval of the Administrator shall be taken.

**4.
Classes of Employees.**

- The Employees of the Board shall be of three classes, namely, class- II class -III and class -IV. Executive Officer and Financial Advisor & Chief Accounts Officer shall be classed as Class II Officer.

The duties and responsibilities of all employees, shall be such as may be specified by the Board by order issued from

time to time.

5.

Creation of Posts.

- All posts shall be created by the Board by passing resolutions to that effect. All orders regarding creation of posts of honorary workers shall be issued by the Secretary and of all posts other than those of honorary workers by the Executive Officer.

6.

Board's power to make appointment.

(1)

Wherever necessary the Board may appoint paid as well as honorary employees and may allow such honorarium, travelling allowances, and daily allowances as it deems fit, subject to the condition that where the honorarium exceeds Rs. 300/- per month previous approval of the Administrator shall be taken.

(2)

Wherever necessary the Board may appoint persons on fixed monthly remuneration (Including allowances) or on daily wages. Prior approval of the Administrator in such cases shall be taken if such monthly remuneration exceeds Rs. 300/- per month of daily wages Rs. 10/- per day.

(3)

In appointing its officers and employees the Board shall consult a Staff Selection committee formed by the Board of its members or outsiders or of both. In the cases where the Staff Selection Committee is formed and consulted, all appointment shall be made by the Executive Officer as per recommendation of such Committee.

7.

Board to lay down Terms and Conditions of Service.

- Subject to the provision of the Act, Rules and these Regulations the board shall lay down the terms and conditions of Services including age limit at the time of recruitment, minimum qualifications and experiences required, gratuity, contributory provident fund, and the conduct, discipline and appeal of all its employees and honorary workers except the Secretary, Executive Officer and Financial Adviser and Chief Accountants Officer. The Board may by order in writing relax any of these terms and conditions wherever necessary to do so in the interest and in furtherance of the work of the Board.

8.

Promotion and Increment.

(1)

Ordinarily promotion shall be made on the basis of seniority, provided the senior most person is also suitable on the basis of merit. The Board may treat any post or any class of posts as selection post or posts to which promotion will be made on the basis of merit only :

Provided that the Executive Officer may in special case with the prior approval of the Chairman and recording his reasons for so doing promote employees, drawing less than Rs. 4300/- per month otherwise than on the basis of seniority.

(2)

Executive Officer may be authorised by the Board to grant higher initial pay or sanction increments respectively, recording in either case his reasons for so doing.

9.

Period of probation or trial period and confirmation.

(1)

Every employee of the Board recruited against a permanent vacancy shall be on probation for a period of twelve months. And every employee of the Board recruited against a temporary vacancy shall be for a trial for a period of three months. Such period of probation or trial may be extended by the appointing authority by six months in individual cases.

(2)

(a)

After satisfactory completion of trial period employees will be continued in the temporary posts.

(b)

After satisfactory completion of the probation period employee recruited against permanent vacancies will be confirmed.

10.

Requirement of Medical Certificate.

(1)

Before joining any post under the Board for the first time. candidate shall be required to produce a medical certificate of fitness from such authority and in such form as May be specified by the Board from time to time.

Provided that such certificate shall not be required in case of employees WhoSe service have been placed under deputation or whose service have been transferred to the Board and who had once produced such certificate.

(2)

Under special circumstances the Board may allow a selected candidate to join without producing such certificate beforehand, but only on the condition that such candidates shall produce it within 3 months from date of his joining

(3)

The Board may by order in writing, subject to previous approval of the Administrator waive the condition regarding the production of medical certificate altogether in special cases. if it deems necessary to do so in the interest of the work of the Board.

(4)

An employer discharged due to inability to secure the necessary medical certificate shall not be re-employed under the Board without his producing such a certificate in advance.

(5)

A fresh medical certificate shall not be required if a discharged employee of the Board is re-employed under the Board within six months from the date of the certificate produced during the previous period of service.

11.

Condition of Deputation Service.

- In the case of Government servant whose service are lent to the board, the terms and conditions of services including pay, other allowance, travelling allowances, daily allowances, leave, provident fund, leave salary, pension contribution and gratuity shall be such as may be laid down by the Government at the time of deputation to the Board. The services will be taken as loan with the previous consent of the Government.

12.

Age of Superannuation, Extension and Re Employment.

- All employees of the Board (other than honorary workers and Government servants on deputation) shall ordinarily retire on the date of completion of 58 (fifty eight) years.

Provided that the Board may extend their services upto the age of 60 years, a special resolution. in each case or re-employ them on specific fresh terms of services, subject to previous approval of the Administrator;

Provided further that the period of extension of service or employment after the age of 58 (Fifty eight) years shall not exceed one year at a time.

13.

Termination of Service.

(1)

During the period of trial the service of a temporary employee may be terminated by the appointing authority without notice and without assigning any reason :

Provided that in respect of Government servant on deputation and Officer appointed by the Administrator under the Act and Rules the decision with regarding termination of their services will be taken by the Government.

(2)

After satisfactory completion of the period of trail, the services of a temporary employee may be terminated by notice of one month or by payment of salary of one month (with allowances) in lieu of notice.

(3)

The service of an employee appointed on probation against a permanent post may be terminated by the appointing authority without notice and without assigning any reason.

(4)

After satisfactory completion of the prescribed period of probation, the services of an employee or permanent employee may be terminated if :-

(a)

his post is abolished and he is not considered qualified for being absorbed in an equivalent or a lower post.

(b)

he is declared on medical evidence to be unfit for further service and

(c)

he absents himself from duty without permission of the competent authority or he is guilty of insubordination intemperance or other misconduct:-

Provided that termination on any of the aforesaid grounds shall be in accordance with the procedure laid down by these Regulations made by the Board in this behalf. Until provisions in this behalf are made by the Board by these Regulations the procedure laid down by the Government will be followed.

14.

Travelling Allowance.

(1)

Employees of the Board shall be eligible for travelling and daily allowances for journeys on tour or on transfer in the interest of the Board at such rates and according to such conditions as may be specified by these Regulations made by the board on this behalf. Until such rates and conditions are provided by the Board, an employee of the Board shall draw travelling and daily allowances at similar rates and on similar conditions as Government servants of the same category grades ;

(2)

The Chairman shall be the controlling Officer in respect of his own travelling and daily allowances bills and also in respect of the travelling and daily allowances bill of the Non-official members including the Secretary of the Board and Officers appointed by the Administrator under the Act and rules.

(3)

The Executive Officer shall be the Controlling Officer in respect of the travelling and daily allowances bills of all the employees.

(a)

Daily allowances shall not be drawn at full rate by any of the employees of the Board for a continuous halt of more than ten days at any particular place, while on tour. Provided that the Chairman may by order in writing, grant, general or individual exemption from the operation of the regulation if he thinks it necessary in respect of non-official members including the Secretary and Officers appointed by the Administrator under the Act and Rules if prolonged halts are necessary in the interest of the work of the Board.

(b)

The power to grant general or individual exemption from the operation of this regulation shall be exercised by the Secretary in respect of all employees of the board.

(c)

The Chairman or in his absence Secretary may be authorised by the Board to grant advance to non-official members, officers and to employees from the travelling allowances grants for journeys which are to be performed by them in connections with work of the Board.

15.

Leave and Leave Salary.

- Until provisions in this behalf are made by the Board by regulations leave including study leave and leave salary admissible to an employee of the board will be in accordance with the rules and orders applicable to a Government servant of the same category and grade.

16.

Deputation Out of India.

- The Board may, with the prior approval of the Administrator, depute any of members or employees to proceed outside India in connection with the Board's Work or on the request of any Foreign Government and also grant funds for the purpose.

17.

Amenities.

- The Board may out of its funds, provide for its employees amenities, such as Canteen, recreation club, lunch room, ladies room etc.

Chapter -III Meetings of the Board and Appointment of Committee and Sub-Committees

18.

Notice of The Meeting.

- Subject to the provisions of rule 11 of the Rules the Secretary shall draw up agendas of meetings under the direction of the Chairman. The time and place of such meeting shall be as fixed up by the Chairman. Five clear day's a notice of every meeting shall be given to all the members.

19.

Circulation of Agenda.

- A copy of the agenda with notes if any, shall be circulated to all members of the Board before the date fixed for the Meeting except where a special meeting has been called by the Chairman for the transaction of emergent business.

20.

Saving.

- Notwithstanding anything contained in Regulation 19, any matter not included in the agenda for a meeting of the board on which the decision of the presiding authority, be placed before the meeting and the Board may consider such matter.

21.

Validation of Proceedings.

- Non-receipt of notice or agenda of a meeting by any member shall not invalidate the proceedings or any resolution passed at such meeting.

22.

Presiding Over The Meeting.

- the Chairman shall ordinarily preside over all the meetings. In his absence the Vice-Chairman or in the absence of both the Chairman and Vice -Chairman the members present in the meeting shall elect one of them other than the Secretary to preside over the meeting.

23.

Moving of Propositions.

- Any member who desires to move any proposition shall send a notice such proposition together with a brief note setting out the reasons in support the proposition to the Secretary at least five days in advance of the meeting so as to enable the proposition being included in the agenda.

24.

Orders of Business.

- The order in which any business may be transacted or any item taken up for consideration at any meeting shall be determined by the presiding authority.

25.

Quorum.

(1)

No business shall be transacted at any meeting of the Board unless quorum shall be present.

(2)

One third of the total number of members of the Board holding office for the time being shall form a quorum.

(3)

If at any of the meeting of the Board there is no quorum, the Chairman or any other member presiding at such a meeting shall adjourn the meeting to another date and it shall be thereupon be lawful to dispose off the business at such an adjourned meeting irrespective of the number of members at such the adjourned meeting.

26.

Adjournment.

- If the Board resolves the Chairman may at any time adjourn any meeting to any future day or to any hour of the same day and if practicable an intimation in that behalf shall be given to all members who were not present Provide that no business other than the business left unfinished shall be transacted at an adjourned meeting and such other business of which notice was given to the members in accordance with the provisions of these Regulations.

27.

Procedure in the next meeting.

(1)

When a meeting is adjourned to a future date any item on the agenda under discussion or remaining to be discussed at the time of such adjournment shall unless the Chairman directs otherwise have the same precedence which it had in the agenda immediately before such adjournment of the business of the adjourned meeting.

(2)

Any proposal on which the decision of the Board is urgently required may be circulated to the members and, if approved by not less than two thirds of the total number of the Board, may be deemed to have been passed as a resolution at a meeting of the Board duly convened Such decision shall be placed before the next meeting of the Board for rectification.

28.

Casting of Votes.

(1)

All questions which may come up for decision before the meeting of the Board shall be decided by majority of votes of the members present and voting at such a meeting. In the event of an equality of votes on any question the person presiding over that meeting shall have and exercise a second or casting vote.

(2)

All votes shall be taken by voice or by show of hand provided that votes shall be taken by ballots when so demanded by members present at the meeting and so decided by the person presiding over the meeting.

29.

Power To Correct Or Alter Minutes.

- The presiding authority shall have the power to correct any obvious errors and to make drafting alterations in the meeting, provided that such corrections or alterations do not change the sense of the decision taken at the meeting.

30.

Minutes of The Meeting.

(1)

In accordance with clause (iii) of rule 11 of the Rules minutes of the proceedings showing inter alia the names of the members present and the decision taken there-at all meetings of the Board shall be entered by the Secretary in a book to be kept for the purpose and shall be Signed by the person presiding over the meeting.

(2)

The Secretary shall lay the minutes before the next ensuing meeting of the Board for confirmation which shall be signed after confirmation by the person presiding there-at Provided that when the office of the Secretary is vacant, the Executive Officer shall enter and lay the minutes as above and Chairman shall forward the minutes to the Administrator and to the Khadi & Village Industries Commission.

(3)

A copy of the minutes of the proceedings of all meetings of the Board shall, within fifteen days after confirmation be forwarded by the Secretary to the Administrator and to the Khadi and Village Industries Commission.

31.

Evidence.

- The Secretary may take evidence or hear any person in the matters concerning the affairs of the Board.

32.

Appointment of Committee and Sub-Committees for Specific Purposes.

- The Board may appoint committees or Sub-committees consisting of one or more of its members and one or more outsiders or of both for specific purpose to consult or advise the Board in carrying out its functions under the Act.

33.

(1)

Constitution. - In exercise of the powers conferred by section 12 of the Act, the Board shall appoint from amongst its members. a standing committee which will consist of the Vice-Chairman who will be ex-officio Chairman of the Committee and four other members. The Executive Officer and the Financial Adviser and Chief Accounts Officer shall attend all the meeting of the Standing finance Committee but they will have no voting powers. The Secretary of the Board shall also be the Secretary of the Committee.

(2)

Function. - The functions of the Standing Finance Committee shall include:-

(a)

Scrutiny of Annual Budget estimates including Schematic and Commercial Budget for recommendation to the Board.

(b)

Scrutiny of the Revised Budget Estimate including Schematic Paid Commercial Revised Budgets and re-appropriation of funds for recommendation to the Board.

(c)

Watching progress of expenditures on various schemes including those of the board's own centres and examining quarterly reports and Annual Reports of the Board and Annual Statements of Accounts of the Board for recommendation to the Board.

(d)

Scrutiny and recommendation for sanction of loans and grants of the co-operative societies, registered institutions, individuals etc. in accordance with the rules for the purpose and according to the patterns laid down by the Khadi Commission/Government.

(e)

Scrutiny of the cases regarding defaulting institutions/societies or individuals and with committee's recommendations to refer to the Board fair decision.

(f)

Subject to the provisions of Rule 22, scrutiny of the cases of write off of losses and to forward to the Board with Committee's recommendations for decision.

(g)

Scrutiny of all cases involving financial liabilities .

(h)

Consideration of any urgent financial matter suggested by the Secretary, the Executive Officer and the Financial Advisor & Chief Accounts Officer.

(i)

The Standing Finance Committee shall function as and advisory body to the Board in all matters of Finance, accounts and audit, purchase of stores etc.

(j)

Any other function that may be assigned to it by the Board.

(3)

Procedure. - The procedure to be followed by the Standing Finance committee for the conduct of its business shall be as follows.

(a)

The Standing Finance Committee shall generally hold a meeting at least once in every three months.

(b)

The Secretary with the approval of the Chairman of the Committee shall serve a notice of every meeting to each member of the Committee and all others concerned at least 5 (five) clear days before the date for the meeting. The notice will clearly indicate the time and place of meeting :

Provided that in case of meeting adjourned for want of quorum the time limit of 5 (five) days shall not apply, and 48 hours, clear notice for such adjourned meeting will be necessary. Special meeting may be invited by the Chairman of the committee with 48 hours clear notice.

(c)

Any member desiring to discuss an agenda at a meeting not included in the notice shall send a note on soul agenda to the Secretary at least 3 (three) days before the date 04 the meeting Provided that urgent matters if any may be placed by the Secretary before the meeting with the permission of the Chairman of the Committee.

(d)

Three members including the Chairman of the Committee who will preside over the meeting shall form the quorum.

(e)

All matters coming before the committee shall be decided unanimously as far as possible.

(f)

The minutes of each meeting shall be placed before the next meeting for confirmation and copies thereof shall be circulated to all the members by the Secretary.

(g)

All cases shall be submitted to the Standing Finance Committee along with the remarks of Financial Adviser and Chief Accounts Officer and cases where standing Finance Committee and the Financial Adviser do not agree, shall be referred to the Board.

Chapter - IV Procedure For Payment, Deposits, Investments and Custody of Moneys On Behalf of the Board

34.

Issue of Sanction of Expenditure.

- Subject to the provisions of sub-rule 4 of Rule 9 and clause (V) of Rule all orders sanctioning expenditure shall be issued by the Executive Officer on behalf of the Board.

35.

Manner of Payment.

- Save payments by way of salary, wages, allowances and honorarium and other payments on behalf of the Board of amounts not exceeding Rs. 100/- be made in cash and of amounts exceeding Rs. 100/- by cheques against current accounts of the Board and shall be signed by :-

(a)

The Secretary and in his absence, the Executive Officer when the value of the cheque does not exceed Rs. 10,000/- and

(b)

Jointly by the Secretary and the Chairman when the value of the cheque exceeds Rs. 10,000/-

36.

Authentication of Deposits.

- All deposits shall be authenticated by the signature of the Secretary.

37.

Petty Cash And Deposit of Surplus Money.

(1)

Petty cash required for meeting current expenditure of the Board be in the custody of the Executive Officer or any other Officer of the Board authorised by the Executive Officer in writing in this behalf. The amount of such petty cash shall be as determined by the Board from time to time.

(2)

The Board may advance an imprest sum not exceeding Rs.500/- to an officer of the Board for incurring petty expenditure within the powers delegated to him. Such officer shall be liable to account for such an advance and maintain proper account in the form specified in this behalf by the Board.

(3)

All moneys not required for current expenditure shall be deposited forthwith in the Bank in appropriate accounts of the Board.

38.

Responsibility For Expenditure And Internal Audit.

(1)

The Executive Officer shall be responsible for ensuring that no expenditure is made from funds of the Board unless provision for such expenditure had been made in the Budget or revised budget of the Board and unless fund available for incurring such expenditure:

(2)

The financial Advisor and chief Accounts Officer shall be responsible to conduct necessary internal audit of all expenditures of the board and to ensure such expenditure is incurred in accordance with the Rules and Regulations and the Act and the orders and instructions issued from time to time by the Government or the Board.

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